

When a Court has jurisdiction of the cause, and proceeds *inverso ordine* or erroneously, no action lies against the party who sues, or the officer or minister of the Court, who executes the precept or process of the Court; but when the Court has not jurisdiction of the cause, the whole proceeding is *coram non iudice*, and an action will lie against them, without any regard of the precept or process.

*Of the action of *assumpsit*,* S. C. [1 Brownl. 199. 2 Brownl. 124].

2 Inst. 462. 548. 4 Inst. 130. 1 Bulstr. 207. Carthew 190. Skinner 445. 470, &c. Rep. Q. A. 105.

Richard Hall brought an action of trespass of assault, battery, wounding and false imprisonment against William Stanley, William Richardson, and Roger Cante, that they 1 Jan. anno 7 Jacobi Regis, did assault, beat, wound, and imprison, and in prison detain for the space of three months, &c. The defendants as to all the trespass, but the assault and imprisonment, and detaining of him in prison, pleaded not guilty; and as to the said assault and imprisonment, &c. the said William Stanley and William Richardson said, *quod Curia dom' Regis, vocal' Curia Marischalcie hospitii dom' Regis, est antiqua Curia ipsius dom' Regis et progenitorum suorum regum Angliæ, & quod eadem Curia tenetur, & a tempore cujus contrar' memoria hominum non existit tenebatur, & teneri consuevit infra virgam, &c. coram Seneschallo Curie Marischalcie & Marischallo hospitii dom' Regis pro tempore existen'*, and that the same Court from time whereof, &c. had jurisdiction to hold pleas of trespass, and trespass on the case, *infra hospitium præd' et infra virgam ejusdem hospitii fact'* and by all the said time within the said Court there were *tam quidam Mariscall' Marischalcie hospitii præd' quam quidam officarii (de le Baston) of the staff, infra virgam hospitii dicti dom' Regis, qui quidem Marischall', Marischalcie hospitii præd' et officarii of the staff pro tempore existen' sunt et per totum idem tempus fuerunt officarii et ministri Cur' præd' et quod omnia brevia & præcepta ejusdem Cur' dirigenda sunt, et per totum tempus præd' direct' & dirigi usitat' fuerunt eidem Marischallo Marischalcie, quod ipse idem Marischall' Marischalcie per se & præd' officarii of the staff, & per ejus mandat' ore tenus [69 a] fact', habent & a toto tempore supradict' habuer' & habere consuever' executionem & retorn' omnium & omnimodorum brevium, præcept' & warrant' quorumcunque a Curia præd' emanant' Marischallo Marischalcie præd' direct'*; & *idem Williel', Williel', et Rogerus ulterius dicunt quod in Curia præd' habetur & toto tempore supradicto habebatur talis consuetudo, viz. quod si aliqua persona existen' def' in aliquo placito transgr' in eadem Curia penden' & in custodiâ Marischalli Mar' Hospitii existen' fuit tradit' in bail'*, and prescribed to let the defendant to bail; and that the said William Richardson before the trespass, and yet is Marshal of the Marshalsea of the household, and the said William Stanley, officer of the staff, and the said Roger Cante before the trespass, *sc. 21 Jan. 5 Jac. Reg. in the said Court of Marshalsea of the household, before Thomas Warre, Esq. then Steward of the said Court, and Thomas Vavasor, Knight, then Marshal of the said household at Southwark, within the county of Surry, within the verge, &c. exhibited a bill against one Thomas Ownstead then in the custody of the Marshal of the Marshalsea of the said household, of a plea of trespass upon the case, and declared, that the said Thomas was indebted to the said Roger in 80l. for divers sums of money by the said Thomas to the said Roger due, and so being indebted to the said Thomas 1 Jan. 5 Jac. Reg. at Islington within the verge (A) promised to pay the said Roger the said 80l. upon request, which he had not done, &c. whereupon the said Thomas was let to bail, and the said Richard Hall and one Richard Petty became his bail: to which declaration the said Thomas Ownstead pleaded non assumpsit, &c. which issue was tried for the plaintiff, and damages and costs assessed, whereupon the plaintiff in the same Court had judgment, the plaintiff upon that judgment sued forth a precept in the nature of a cap' against the said Thomas Ownstead, directed to the Marshal of the Marshalsea of the household, who returned non est inventus; whereupon the then plaintiff sued forth a precept in the nature of a cap'. to take the body of the said Thomas Ownstead, or of Richard Hall and Richard*

(A) Where a party who was plaintiff below justifies under process of an Inferior Court, it is necessary to set forth in his plea that the cause of action arose within the jurisdiction of the Court. *Evans v. Munkley*, 4 Taunt. 48. and *vid. Briscoe v. Stephens*, 2 Bing. 213.